

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
APRIL 29, 2026
8:30 a.m.

5. STEPHAN HAASE V. TAYLOR BROOKE MYATT

23FL0933

This matter is before the court for hearing of the Request for Order (RFO) filed by the Respondent on March 03, 2026, to modify visitation. The filing of the RFO prompted the court to refer the parties to a CCRC session set for March 20, 2026. Proof of service filed March 04, 2026, shows the RFO and supporting UCCJEA declaration (but not the court's Notice of Tentative Ruling) were electronically served upon the Petitioner that same day.

On March 10, 2026, the court entered the parties' stipulation to continue the CCRC session to March 23, 2026.

The court is in receipt of a CCRC report dated March 30, 2026, a copy of which was mailed to both parties, as well as their attorneys, on April 02, 2026, per the Clerk's Certificate of Mailing filed that same day.

On April 16, 2026, the Petitioner filed a Responsive Declaration. Proof of service filed April 16, 2026, shows it was served upon the Respondent that same day via overnight delivery.

On April 22, 2026, the Respondent filed a reply declaration, a copy of which was served upon the Petitioner via mail that same day.

The court finds that the Agreements reached by the parties as contained in the CCRC Report, as well as the Recommendations of the CCRC counsellor, are in the best interests of the parties' child, SH (age 7), and so adopts them as the orders of the court.

TENTATIVE RULING #5: THE RFO IS GRANTED IN PART. THE COURT FINDS THAT THE AGREEMENTS AND RECOMMENDATIONS CONTAINED IN THE CCRC REPORT DATED MARCH 30, 2026, ARE IN THE BEST INTERESTS OF THE PARTIES' CHILD, SH (AGE 7), AND SO ADOPTS THEM AS THE ORDERS OF THE COURT.

BECAUSE THERE IS NO PROOF OF SERVICE FOR THE COURT'S NOTICE OF TENTATIVE RULING IN THE COURT'S FILE, THE COURT WILL NOT LIMIT THE PARTIES' ABILITY TO PRESENT ORAL ARGUMENT UNDER LOCAL COURT RULE 8.05.07 (GENERALLY REQUIRING A TIMELY ORAL ARGUMENT REQUEST, AS WELL AS NOTICE UPON THE OTHER PARTY, ON THE DAY THE TENTATIVE RULING IS ISSUED).

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6. STEPHANIE CHAVEZ V. EDUARDO ALBERTO TORRES OCHOA 25FL0929

This matter is before the court on the petition to declare minor free from parental custody and control of the Respondent filed by the Petitioner on September 05, 2025, under Family Code section 7822. On February 25, 2026, the court issued an amended citation to appear for April 29, 2026.

On February 27, 2026, the court granted Petitioner's request to serve the amended citation by posting it for 28 continuous days at the South Lake Tahoe Branch of the El Dorado County Superior Court.

Proof of service filed March 30, 2026, shows that the Petitioner properly served the amended citation by posting. Additionally, on March 04, 2026, Petitioner filed proof of service via mail that same day.

The court investigator's report filed December 03, 2025, recommends granting the relief requested. The court notes that the investigator was able to interview the Respondent, who consents to the request but asks for the opportunity to have visits or other contact with the child.

The court grants the petition. Given that the nature of the petition is to terminate parental rights, the court will not order any visitation; however, the court's order does not preclude the Petitioner from allowing the Respondent to have visits.

TENTATIVE RULING #6: THE PETITIONER'S RFO TO DECLARE THE MINOR FREE FROM PARENTAL CUSTODY AND CONTROL OF THE RESPONDENT IS GRANTED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.